

and that there was no third party bona fide purchaser since Defendant bought the subject property at the sale, and that the Trustees Deed Upon Sale had not yet been recorded, it was reasonable for Plaintiff to believe his position had substantial support. Both parties are to pay their own attorney's fees.

### **Conclusion**

Based on the above, **Defendant's motion is GRANTED, and each party shall bear their own fees and costs.**

**7. 9:00 AM CASE NUMBER: C25-00811  
CASE NAME: A.V.P. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT  
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT  
FILED BY: WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT  
\*TENTATIVE RULING:\***

Withdrawn by moving party.

**8. 9:00 AM CASE NUMBER: C25-01235  
CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS  
HEARING ON DEMURRER TO: CROSS COMPLAINT OF CATHERINE AMOURIS - CONTINUED FROM 2/2/26  
FILED BY:  
\*TENTATIVE RULING:\***

Plaintiff and cross-defendant Charles Cauffield ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Catherine Amouris ("Cross-Complainant"), asserting that the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action do not state facts sufficient to constitute a cause of action. Specifically, Cross-Defendant argues that Cross-Complainant's fraud-based causes of action are barred by the statute of limitations and are not pleaded with the requisite specificity.

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; California Rules of Court, Rule 3.1320(g).)

### **Meet and Confer**

The meet and confer requirement has been satisfied. (Paymon Hifai Decl., ¶¶ 1-2; Code Civ Proc., § 430.41.)

### **Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39